

Lawyer Brief — GACA Corpus Rights Question

SECTION 02-legal

TYPE brief

STATUS **active**

OWNER Founder

UPDATED 2026-08-19

[!NOTE] **Superseded 2026-08-19 — retained as a record, not corrected.** This document captured the position as it stood on its own date. The price card, the B2B pricing model and the platform architecture have all changed since: see [01-governance/decision-log.md](#) DEC-011 and [03-finance/monetization.md](#) for what is current. Nothing below has been edited — its value is that it records what was decided or observed at the time, including the parts that later turned out to be wrong.

Document: lawyer-brief-corpus-rights-2026-06-14.md **Version:** 1.0 — 2026-06-14 **Status:** Brief for qualified Saudi IP counsel — NOT legal advice. **Prepared by:** Adel Yahya A. Madkhali, Founder, Fly GACA — with AI drafting assistance **Relationship to existing brief:** This document supplements and supersedes the corpus-rights section of the earlier lawyer-brief.md (02-legal/lawyer-brief.md, dated May 2026) with more complete factual context and a refined set of questions. The two documents should be read together. **Contact:** i@flygaca.com | legal@flygaca.com

This is a brief prepared for a Saudi-qualified intellectual property lawyer. It is NOT legal advice and does NOT represent a legal opinion. The factual description and legal analysis set out in the "Our Understanding" sections below is desk research only — it may be incomplete or incorrect, and we ask counsel to correct it. We need a written legal opinion to unblock launch.

1. Who We Are and What We Have Built

Fly GACA is an independent, private educational reference platform for Saudi civil aviation regulations. It is not affiliated with, endorsed by, or connected to the General Authority of Civil Aviation (GACA) or the Government of the Kingdom of Saudi Arabia. Every page of the platform carries a prominent disclaimer to that effect.

The platform does two things:

1. A **free, searchable online library** that provides access to Saudi civil aviation regulatory documents, publications, and aeronautical information.
2. A **paid AI study assistant** ("Captain Adel") that helps students and aviation professionals study for examinations and understand regulations, citing official GACA sources.

Current business status:

- Platform built; PWA live in pre-launch
- Domain: flygaca.com
- Operated by a single founder (Saudi national); entity formation in progress
- Revenue model: free library access + paid Pro subscription (SAR ~99/month) + Academy B2B tier for flight schools

Launch dependency: We cannot launch the library product without knowing whether we are permitted to host the regulatory content we have assembled. This opinion is an absolute launch blocker.

2. The Corpus — What We Have and What We Propose to Do

We have classified the content we want to host into three tiers. We need advice on each.

Tier A — Official GACA Regulatory Publications (Proposed: HOST full copies)

These are the documents at the core of the product. They are published by GACA in PDF form at gaca.gov.sa and are the primary study material for Saudi civil aviation examinations.

Document Category	Examples	Our Proposed Treatment
General Authority of Civil Aviation Regulations (GACAR) — Parts 1-199	GACAR Part 61 (Pilot Licensing), Part 91 (General Operating Rules), Part 121, Part 135, Part 141, etc.	Host full text on our servers; make searchable and linkable; displayed in-browser via PDF reader or parsed HTML
GACA Civil Aviation Directives (CAD)	CAD-OPS-001, CAD-AIR-xxx series	Host full text
GACA Advisory Circulars (AC)	AC series published by GACA	Host full text
GACA-published Aeronautical Information Publication (AIP) — select sections	GEN, ENR general sections (not operational charts/approach plates — see Tier C)	Index and display for familiarisation
GACA forms and application documents	Licensing application forms, medicals forms	Host for reference; link to official submission channel
GACA public notices and press releases	Regulatory change announcements	Reference and summary

Our proposed treatment of Tier A content:

- Store on our servers (Google Cloud / Firebase in KSA region)
- Display in-browser for registered and anonymous users
- Make searchable by keyword, document number, and subject

- Allow Captain Adel AI to cite and quote sections (attribution always given; GACA named as source)
- Clearly label each document as an official GACA publication; include the official GACA URL as reference

Precautionary position if hosting is not permitted: We would pivot to (a) linking to GACA's own server for each document rather than hosting copies, and (b) hosting only our own summaries, annotations, and study notes about each document. The product would be substantially less useful but legally safer. We need to know if the full hosting approach is permissible.

Tier B — Original Fly GACA Content (No legal issue — our own IP)

These documents are created entirely by us and raise no third-party IP concern:

- Study guides and notes written by our team summarising GACAR provisions
- Examination preparation questions and worked answers (not copied from official examination banks)
- Captain Adel AI study responses (generated, not copied from source documents)
- Platform software, design, and branding

Tier C — Third-Party Published Material (Proposed: link only, do not host)

We propose NOT to host the following — they belong to third parties other than GACA:

- ICAO Annexes, Standards and Recommended Practices (SARPs) — published by ICAO; commercial licensing applies
- Aircraft Pilot's Operating Handbooks (POH) / Approved Flight Manuals (AFM) — proprietary to aircraft manufacturers
- Aviation examination question banks (if any official bank exists) — potentially proprietary to GACA or examination authority
- Jeppesen or equivalent navigation charts — commercial third-party content

We confirm we are NOT proposing to host Tier C material. If counsel believes any Tier C category requires additional precaution (e.g., avoiding even descriptive reference), please advise.

3. The Legal Question — What We Need to Know

Question 1 (Primary): May Fly GACA lawfully host full copies of Tier A documents (GACAR Parts, GACA CADs, ACs, and related official publications) on a commercial website and serve them to paying and non-paying users?

We need to know:

- Whether GACA (or the Government of the Kingdom of Saudi Arabia) holds copyright in these documents

- Whether, if copyright exists, any exception under the 2022 Copyright Law (Royal Decree M/41, 1443H) applies — in particular whether an educational use, public information, or government-works exception permits our use
- Whether government works in the Kingdom are subject to copyright protection in the same way as private works, or whether they carry different protections or conditions
- Whether there is any licence, explicit permission, or public dedication associated with GACA's published material
- What the practical risk is: if we host without permission, what is the legal exposure? (Penalties under the 2022 Copyright Law: fines up to SAR 1,000,000 for infringement)

Question 2 (Secondary): If full hosting is not permitted, is there a lower-risk alternative model?

Specifically: (a) Is it permissible to display regulatory excerpts (short quotations — e.g., the text of a specific regulation) rather than full documents, for the purpose of enabling users to understand a provision? (b) Is it permissible to display full documents through an inline frame or embedded viewer that serves the document directly from GACA's own server rather than ours? (c) Is it permissible to provide hyperlinks to GACA's official copies with a prominent GACA attribution? (d) Is it permissible to host our own summaries, paraphrases, and annotations of the regulatory provisions (i.e., our original work about GACA's regulations), without reproducing the full text?

Question 3: Captain Adel AI — quoting regulatory text in AI responses

When Captain Adel answers a study question, its response may quote a specific regulatory provision verbatim (e.g., "GACAR 61.113(a) states: 'No person may act as pilot in command of an aircraft unless that person holds...'"). Is this use — short verbatim quotation, attributed to GACA, in an AI study response — permissible? Does the answer change if the subscription is paid rather than free?

Question 4: Pre-emptive authorisation — should we approach GACA?

Is there a formal process by which we could obtain written authorisation from GACA to host Tier A documents? We are not opposed to seeking permission, if counsel believes (a) permission is obtainable and (b) the outcome would be a clear licence providing us legal certainty. If permission is unlikely to be granted or the process is impractical, we would prefer to know now so we can design around it.

4. Relevant Facts for Counsel's Assessment

4.1 Nature of the Content

All Tier A documents are official regulatory publications. They are published by GACA for the purpose of informing the aviation industry of applicable rules. In most jurisdictions, such documents are either in the public domain (being law), available under open government licences,

or subject to specific copyright exceptions for regulatory material. We do not know whether this is the case in Saudi Arabia — that is precisely what we are asking.

4.2 Commercial Nature of Our Service

We are a commercial service. We will generate revenue from subscriptions that provide access to the Library. We cannot represent that our use is purely non-commercial. This is relevant because exceptions may be narrower for commercial use.

4.3 Attribution and Accuracy Measures

Every Tier A document displayed on our platform:

- Carries a clear attribution label identifying it as an official GACA document
- Is displayed alongside the official GACA URL as the authoritative source
- Is accompanied by a disclaimer that it may not reflect the latest amendment and that users must verify against the official source
- Has no Fly GACA branding that could be confused for the source of the document

4.4 The Existing lawyer-brief.md

The earlier brief (02-legal/lawyer-brief.md, May 2026) sets out our three-tier content classification in more detail and includes our desk-research assessment of the legal position. Counsel should read that document for further factual background. This document refines and extends the earlier questions.

4.5 Precedents We Are Aware Of

We are aware that other countries' official regulatory publications are handled differently: some (e.g., US FAA regulations, UK CAA regulations) are in the public domain by statute; others (e.g., EASA) require specific licence agreements for commercial use. We do not know which model Saudi Arabia follows. Counsel should advise what, if any, comparable KSA precedents exist.

5. What We Need From Counsel

A written legal opinion addressing Questions 1–4 in Section 3, comprising:

1. A clear statement of whether Fly GACA may lawfully host Tier A documents on a commercial basis under current KSA law, and on what conditions (if any).
2. If full hosting is not permitted, which of the alternative models in Question 2 is most defensible and why.
3. Counsel's view on the AI quotation scenario in Question 3.
4. Counsel's recommendation on whether to seek GACA authorisation and, if so, a suggested approach.

5. An assessment of the risk level if we proceed under the most permissive interpretation and are wrong.
6. Any recommended steps to reduce risk in the interim (e.g., notices on the platform, holding documents behind a login rather than serving them anonymously).

Preferred format: Written opinion on firm letterhead, signed by responsible solicitor/advocate. We will need to share this opinion (in summary) with prospective investors and B2B Academy customers as evidence of legal diligence.

Timing: This opinion is on the critical path to launch. We are targeting a public launch within 60 days of receiving this brief. We would like to receive the opinion within 20 working days if possible.

Fee estimate: Please provide an estimate of your fees for this opinion before commencing work.

6. Contact and Documents Available for Review

Contact: Adel Yahya A. Madkhali | i@flygaca.com | [phone to be provided separately]

Documents we can provide:

- Sample Tier A documents as they appear on our platform
- Our platform architecture overview (data flows, storage location, display mechanism)
- The earlier lawyer-brief.md
- Screenshots of how documents are displayed and attributed

Brief prepared 2026-06-14 by Fly GACA with AI drafting assistance. Not legal advice.